

****SEE ALSO Newsletter of February 6, 2024****

[web doc no. 9979128]

****Provision of January 11, 2024****

****Register of Provisions****

No. 7 of January 11, 2024

****THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA****

In today's meeting, attended by
Prof. Pasquale Stanzione, President,
Prof. Ginevra Cerrina Feroni, Vice President,
Dr. Agostino Ghiglia and
Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

****HAVING REGARD TO**** Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

****HAVING REGARD TO**** Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

****HAVING REGARD TO**** Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, web doc no. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

****HAVING REGARD TO**** the documentation on file;

****HAVING REGARD TO**** the observations made by the Secretary General pursuant to Article 15 of Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, web doc no. 1098801;

****Rapporteur**** Prof. Pasquale Stanzione;

****WHEREAS****

1. ****Introduction.****

While noting that, based on a check carried out by the Authority on the relevant institutional website, the Free Municipal Consortium of Caltanissetta (hereinafter, the "Consortium") has published the contact details of the Data Protection Officer (hereinafter, the "DPO") appointed pursuant to Article 37 of the Regulation, it does not appear that the Consortium has communicated the contact details of the DPO to the Authority, for which compliance it has made available a dedicated channel (accessible at the page <https://servizi.gpdp.it/comunicazionerpd/s/>).

2. ****The investigative activity.****

By note of XX (prot. no. XX), the Office, based on the elements acquired and the checks carried out, notified the Consortium, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for failing to communicate the contact details of the DPO to the Authority, in violation of Article 37, paragraph 7, of the Regulation.

With the same note, the Consortium was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note of XX (prot. no. XX), the Consortium submitted its defensive memorandum, stating, among other things, that:

- "In recent years, there has been a significant reduction in personnel due to the retirement of many employees, for whom there has not been the necessary turnover due to the hiring freeze";
- "The COVID period and the post-COVID period, with the consequent placement of personnel in smart working, have considerably affected the overall functioning of services, increasingly redistributed among the now completely insufficient staff."

3. **Outcome of the investigative activity.**

The processing of personal data by public entities must take place in compliance with the provisions of the Regulation and the Code.

Pursuant to Article 37 of the Regulation, "The data controller and the data processor shall systematically designate a data protection officer whenever: a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity" (paragraph 1, letter a)); "The data controller or the data processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority" (paragraph 7).

Furthermore, in the "Guidelines on Data Protection Officers (DPOs)" adopted by the Article 29 Working Party on data protection on December 13, 2016, and amended on April 5, 2017, it is added that "Article 37, paragraph 7, of the GDPR requires the controller or the processor to publish the contact details of the DPO and to communicate the contact details of the DPO to the relevant supervisory authorities. These provisions aim to ensure that both data subjects (within or outside the entity/body that is the controller or processor) and supervisory authorities can easily and directly contact the DPO without having to go through another intermediary."

operating structure at the data controller/processor"
(par. 2.6).

Also, the "Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector," adopted by the Authority on April 29, 2021, with decision no. 186 (web doc no. 9589104), specifies that "Regarding communication to the Authority, it is emphasized that the Authority has made available a specific online procedure not only for communication but also for the variation and revocation of the name of the designated DPO. This procedure represents the only contact channel that can be used for this specific purpose and can be found at the page <https://servizi.gdpd.it/comunicazionerpd/s/>, where the appropriate instructions and related FAQs are also provided: moreover, attention is drawn to the entities to correctly enter the required data, such as the identification of the data controller (the entity as a whole, and not the legal representative) and the completion of the tax code of the administration (and not the VAT number, or the tax code of another subject)" (par. 7).

In this case, having verified the failure to communicate the contact details of the DPO to the Authority, the violation of art. 37, par. 7, of the Regulation is established.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the Consortium during the investigation – the truthfulness of which may be called into question under art. 168 of the Code – although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by art. 11 of the Authority's Regulation no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Consortium is noted for failing to communicate the contact details of the DPO to the Authority in violation of art. 37, par. 7, of the Regulation.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i), and 83 of the Regulation; art. 166, comma 7, of the Code). The Authority, pursuant to arts. 58, par. 2, lett. i), and 83 of the Regulation as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to the [other] corrective measures [referred to in this paragraph], or in lieu of such measures,

depending on the circumstances of each individual case” and, in this context, “the College [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to article 166, comma 7, of the Code” (art. 16, comma 1, of the Authority's Regulation no. 1/2019). In this regard, in this case, the violation of the cited provision is subject to the application of the same administrative pecuniary sanction provided for by art. 83, par. 4, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation, concerning which the following observations are made. The failure to communicate the contact details of the DPO by the Consortium negatively impacted the possibility for the Authority to contact the DPO easily and directly.

On the other hand, it is noted that the Consortium has taken steps to remedy the violation and mitigate its possible negative effects (having communicated the contact details of the DPO to the Authority on May 30, 2023) and that there are no previous relevant violations committed or previous measures under art. 58 of the Regulation against it. It is also noted that the violation was negligent. In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €2,000 (two thousand) for the violation of art. 37, par. 7, of the Regulation as an administrative pecuniary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

It is also considered that the accessory sanction of publication on the Authority's website of this provision, as provided for by art. 166, comma 7, of the Code and art. 16 of the Authority's Regulation no. 1/2019, should be applied, as it concerns the failure to comply with an obligation that has become mandatory for more than five years.

Finally, it is believed that the conditions set forth in art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY pursuant to art. 57, par. 1, lett. f), of the Regulation, declares the conduct of the Free Municipal Consortium of Caltanissetta, described in the terms of the motivation, illegal, consisting of the violation of art. 37, par. 7, of the Regulation.

ORDERS

The Free Municipal Consortium of Caltanissetta, located at Viale Regina Margherita, no. 28, 93100, Caltanissetta - C.F.00115070856 - pursuant to arts. 58, par. 2, lett. i), and 83, par. 5, of the Regulation and art. 166, comma 2, of the Code, to pay the sum of €2,000 (two thousand) as a penalty for administrative pecuniary sanction for the violations indicated in the reasoning;

ORDERS

The Free Municipal Consortium of Caltanissetta, to pay the sum of €2,000 (two thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.

In this regard, it is noted that the offender retains the right to settle the dispute

by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to Article 166, paragraph 8, of the Code (see also Article 10, paragraph 3, of Legislative Decree No. 150 of 1/9/2011);

PROVIDES

for the publication of this provision on the website

of the Guarantor pursuant to Article 166, paragraph 7, of the Code;
the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to file an appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 11, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei